

Court No. - 40

Case :- WRIT - C No. - 42999 of 2017

Petitioner :- Mr. Vijay Kumar Tiwari

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Kamal Srivastava, Bhanu Pratap Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Bala Krishna Narayana, J.

Hon'ble Shailendra Kumar Agrawal, J.

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, Advocate who has accepted notice on behalf of respondent nos. 2, 3 and 4.

In view of the order proposed to be passed herein, notice need not be issued to respondent no. 5.

This writ petition has been filed by the petitioner with the prayer to issue a writ, order or direction in the nature of mandamus commanding the respondent nos. 2, 3 and 4 to provide commercial and domestic electricity connection to the petitioner at House No. 258/29A, New Sohbatibagh, Allahabad, which he is occupying as a tenant.

It has been submitted by learned counsel for the petitioner that the petitioner has made an application before the respondent no. 2 on 4.9.2017 for grant of power connection at his rented accommodation of House No. 258/29A, New Sohbatibagh, Allahabad but no order has been passed on his application.

Per contra, Sri Mahboob Ahmad appearing on behalf of U. P. Power Corporation has submitted that the petitioner having not applied for grant of power connection on the prescribed format, as provided by Electricity Supply Code, 2005, his prayer for grant of power connection cannot be granted and in case he applies on the prescribed format, his application shall be dealt with in accordance with rules.

Having heard learned counsel for the parties and perused the application moved by the petitioner before respondent no. 2, which is admittedly not on the prescribed format, this writ petition is disposed of giving liberty to the petitioner to move a fresh application on prescribed format before the respondent no. 2 for grant of power connection at his rented accommodation of House No. 258/29A, New Sohbatibagh, Allahabad.

Needless to say, that in case the landlord of the petitioner refuses to give 'No Objection Certificate' for grant of power connection at the petitioner's rented accommodation as required by Clause 4.4 of Electricity Supply Code, 2005, the petitioner shall be permitted to furnish indemnity bond in conformity with the Annexure 4.2 of the Electricity Supply Code, 2005 after depositing requisite fee. In case, any such application is filed within a period of two weeks from today, appropriate orders shall be passed thereon by the respondent no. 2 within a further period of ten days.

Order Date :- 14.9.2017

HR